

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 32  
JUDICIAL OFFICER: JONI T HIRAMOTO  
HEARING DATE: 07/10/2026

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Meeting ID: 161 336 0625

Passcode: 180770

**Law & Motion**

1. 9:00 AM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

\*HEARING ON MOTION IN RE: STAY PROCEEDINGS OR, IN THE ALTERNATIVE, CONTINUE THE TRIAL  
FILED BY: GOLDEN GATE BELL, LLC.

**\*TENTATIVE RULING:\***

Before the Court is Defendants Golden Gate Bell, LLC and Diversified Restaurant Group, LLC's Motion to Stay Proceedings or, in the alternative, Continue the Trial ("Motion").

Defendants' unopposed Request for Judicial Notice is **granted**.

Plaintiff's unopposed Request for Judicial Notice is **granted**.

The Court notes that the RJN requests that the Court take notice of the "Order granting Defendants' Motion to Dismiss, dated July 31, 2025. Docket 17." The

document attached, however, is not the Court's Order on the Motion to Dismiss. Instead, it is the defendant insurance companies' Motion to Dismiss with a [Proposed] Order. The Court can take judicial notice of the facts the defendant insurance companies filed such a motion but cannot take judicial notice that it was granted.

### **Initial Consideration**

The Court notes that Defendants repeatedly cite to "Dkt." at certain lines in their opening brief. There is no explanation, however, as to what "Dkt." refers to. Defendants did not request judicial notice of the federal court docket, so it does not appear that is what they are referring to. As such, the Court is unclear to what those citations refer.

The Court also notes that the parties reference the proceedings before the Ninth Circuit but fail to seek judicial notice – and provide a copy of – the docket for the pending matter. This prevents the Court from having an admissible record of where the proceedings stand. Counsel fail to provide even a declaration supporting their statements about the status of those proceedings. For example, there are several dates listed in footnote 1 of the Reply but without any citation to support these statements.

Without further information, the Court cannot infer what Defendant's mean by their references to "Dkt." In the future, the parties should make sure to attach the correct documents and provide support for their factual assertions via a proper request for judicial notice and/or supporting declaration.

### **Factual and Procedural Background**

This matter involves allegations of workplace harassment and assault of Plaintiff by Defendant Rafael Moreno. Plaintiff was hired to work at Defendant Golden Gate Bell, LLC ("Bell") in September 2022. Shortly after starting work at Bell, Defendant Moreno began to make sexual remarks towards Plaintiff. This escalated to the point where, on December 10, 2022, Defendant Moreno physically assaulted Plaintiff and told her he wanted to have sex with her – on Bell grounds.

On or about December 11, 2022, Plaintiff attended a meeting, accompanied by her mother, with the general and shift managers to discuss the incident. After the meeting, Plaintiff filed a police report. Bell then removed Plaintiff from the work schedule and ultimately terminated her. Plaintiff was a minor at all times relevant to the actions set forth in the Complaint.

On March 21, 2023, Plaintiff filed the complaint initiating this matter. The Complaint alleges 13 causes of action, including five against Defendant Moreno. At some point, Defendant Moreno was arrested. A criminal complaint was filed on

March 17, 2023, charging him with several crimes related to the events of December 10, 2022.

After being sued, Defendants tendered their defense to their insurance carriers. While the carrier initially accepted the tender and defended the matter, in May 2023 it withdrew the defense and denied coverage. Defendants indicate that the coverage dispute is the subject of separate proceedings before the Ninth Circuit and remains unresolved.

### **Standard for Imposing a Stay**

“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court “explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (*Ibid.* quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

### **Analysis**

#### **Trial Continuance**

Defendants filed their motion on May 29, 2026. The request for a continuance asks for an “order continuing the trial date currently set for July 21, 2026, to a date no earlier than November 17, 2026, and continuing all trial-related deadlines accordingly.” (Motion at 14:13-15.)

On June 16, 2026, Plaintiff filed her opposition to the Motion requesting that the Court deny the Motion. On June 22, 2026, however, Plaintiff appeared *ex parte* seeking her own continuance of the trial and all trial-related deadlines, except for summary judgment/adjudication motions.

On June 25, 2026, the Court granted Plaintiff’s *ex parte* application. In that Order the Court continued the trial to January 26, 2027 – a date beyond that requested by Defendants. It also reset dates for the mandatory settlement conference and issue conference.

Accordingly, Defendants’ request for a continuance is **denied as moot**. The Court has already continued the trial to a date beyond that requested by Defendants.

#### **Stay of Proceedings**

Defendants’ request a stay of all proceedings pending the determination of the Ninth Circuit appeal related to their coverage dispute with their insurance carriers or 180 days, whichever occurs first.

As outlined above, the complaint in this matter was filed on March 21, 2023. Defendants tendered to their carrier(s) and the carrier(s) initially accepted coverage. According to Defendants, “in May 2023” the carrier(s) “withdrew the defense” and “denied coverage....” (Motion at 6:16-21.) At some point thereafter (neither party provides a precise date), Defendants sued their insurance carrier(s). They make clear that coverage was withdrawn “after five months and no insurer has paid defense costs since....” (Motion at 12:23-24.) Defendants waited for three years, however, to inform this Court of the dispute with its carrier(s) and to seek any kind of relief.

It is unclear when the Ninth Circuit will rule on the underlying action. According to Defendant’s Reply papers, Defendants’ opening papers were due July 7, with answering briefs due August 6, and any optional reply brief due 21 days after service of the answering brief. (Reply at fn. 1.) There is no mention of when oral argument may be scheduled or when a final ruling may occur.

The Court is mindful of the predicament a party is put into when defending an action while simultaneously fighting with its insurer to obtain coverage it believes it is entitled to. Here, however, Defendants have been vigorously defending this matter for years while the dispute with its insurer plays out. It does not appear that continuing to do so would be a substantial burden on Defendants – at least related to continued discovery and associated issues related to moving this matter forward toward trial.

The issues related to settlement present different concerns. As noted by Defendants, the parties have previously participated in two mediations – in August 2024 and April 2026 – but were unable to resolve the matter. Defendants indicating that they have “been unable to meaningfully evaluate settlement without clarity regarding whether their insurers will participate in funding any resolution.” (Motion at 8:16-17.) The Court is aware that the availability of insurance proceeds to fund a settlement can be a very important aspect of evaluating and finalizing a settlement between parties.

The Court notes that when this motion was filed the case was set to go to trial on July 21, 2026. Since that time,

[1] the trial has been continued until January 26, 2027, 10:00 a.m., in Dept. 32,

[2] the Issue Conference is now set for January 15, 2027, 1:30 p.m., in person, in Dept. 32,

[3] There is also mandatory judicial settlement conference scheduled for October 29, 2026 at 1:30 p.m. (in person) in Dept. 20 with Judge O’Connell.

The Court is aware that the presence or absence of insurance could impact those discussions.

Currently, the Court is not inclined to stay the proceedings. It believes the parties should continue to move forward with discovery – especially given the contentious nature of the discovery proceedings to date – and working toward getting this matter ready for trial. The Court may consider continuing the mandatory settlement conference (and possibly trial) date again if it appears that a resolution of the Ninth Circuit appeal is imminent.

Given the changing circumstances since the filing of the original motion and the Court's initial thoughts outlined above, the Court is open to hearing from the Parties regarding their thoughts on how best to proceed. The Court would also like an update on the status of the Ninth Circuit appeal, especially related to scheduling of argument (if any) and/or any deadlines wherein the Parties expect a ruling from the Ninth Circuit.

The Court notes that an Issue Conference was originally scheduled for 1:30 the same date as the hearing on this motion (Friday, July 10), and that a new Issue Conference date of January 15, 2027 1:30 p.m. in Dept. 32 (in person) was set by the court. **The court meant to vacate the July 10 2026 date when it set the January 15 2027 date, and does so now.**

### **Conclusion**

Defendants' request for a continuance of the trial date is **denied as moot** given that the Court continued the trial date to January 26, 2027, while this motion was pending. The request to stay the matter is also **denied**.

**The Issue Conference set for 1:30 p.m. on July 10, 2026 is vacated. The Issue Conference has been set for January 15, 2027 at 1:30 pm in Dept. 32.**

**Parties are advised to familiarize themselves with Dept. 32's Issue Conference Orders, available on the court's website.**

2. 9:00 AM CASE NUMBER: C23-01988  
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST  
HEARING ON SUMMARY MOTION  
FILED BY: MERCEDES-BENZ USA, LLC  
**\*TENTATIVE RULING:\***

Continued by the Court to August 21, 2026.

3. 9:00 AM CASE NUMBER: C23-02214

CASE NAME: MARIA SILVA VS. ERIC TU

HEARING ON SUMMARY MOTION JUDGMENT

FILED BY: TU, ERIC

**\*TENTATIVE RULING:\***

Defendant Eric Tu ("Defendant") brings the instant motion for summary judgment ("Motion") against the complaint of plaintiff Maria Silva ("Plaintiff").

For the reasons discussed below, the Court **GRANTS** Defendant's Motion.

### **Legal Standard for Motion for Summary Judgment**

Code of Civil Procedure ("CCP") § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant's Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving

party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

## **Background**

### **Summary of Allegations from the Complaint**

On September 1, 2023, Plaintiff filed the instant ten-paragraph complaint (“Complaint”) against Defendant, asserting a claim of premises liability. The Complaint alleges that on September 1, 2021, Plaintiff slipped and/or tripped on a dangerous and/or unsafe and/or defectively designed area. (Complaint, ¶ 5.) It further alleges that Defendant “negligently owned, managed, designed and/or inspected and/or repaired and/or otherwise managed these premises so as to allow the common area walkway for patrons to remain in an unsafe and dangerous condition . . . .” (*Id.* at ¶ 6.) Defendants knew or should have known of the dangerous condition in order to fix or warn of the danger but failed to fix or warn the condition. (*Id.* at ¶ 7.) Defendant’s failure caused Plaintiff to be injured and will result in some permanent disability to Plaintiff. (*Id.* at ¶ 8.) Plaintiff was unable to undergo her usual daily activities. (*Id.* at ¶ 10)

### **Undisputed Material Facts**

*UMF Nos. 1-4, 6, 7, 8, 12*

Plaintiff lived at the building where the incident occurred (the “Property”) since 2007. (Undisputed Material Fact from Plaintiff’s Separate Statement in Support of Opposition [“UMF”] Nos. 1-2.) On September 1, 2021, at around 12:45 pm, Plaintiff exited her residence and descended the outdoor stairwell on what she described as a sunny day. (*Id.*, Nos. 3-4.) The door to exit the Property was held open with a stone base for cigarettes. (*Id.*, No. 6.) Plaintiff tripped over the stone base which was partially holding the door to the outside open. (*Id.*, No. 8.) UMF No. 7 is a picture of the stone base holding the subject doorway open and is not disputed. UMF No. 12 states that “Prior to the subject incident Plaintiff had never tripped over the stone base,” and is not disputed.

The Court will address a number of additional facts Defendant asserts as undisputed that Plaintiff labels "Disputed." For the reasons stated below, the Court finds that the facts are undisputed for purposes of the instant motion.

*UMF No. 5*

UMF No. 5 provides that "Plaintiff was wearing sunglasses, and her hands were occupied at the time of the subject incident." Plaintiff asserted in response that this is "Disputed in Part that Plaintiff's hands were occupied." (Response to UMF No. 5.) Plaintiff cites her own deposition transcript without any specific pin cites to support her assertion that UMF No. 5 is "Disputed in part." In support of UMF No. 5, Defendant cites to Plaintiff's deposition transcript at p. 16:9-16, 18:25, and 19:1-9, which provide as follows:

p. 16:9-16

9 THE WITNESS: When leaving the building I had  
10 my hands occupied, and so I could not open the door, so  
11 my right foot -- with my right foot --  
12 THE INTERPRETER: The interpreter is going to  
13 ask for a repetition.  
14 THE WITNESS: My right foot hit or tripped a  
15 base that was holding the door. Then I fell, and the  
16 frame on my glasses hit my forehead and cut it.

p. 18:25 and 19:1-9

|         |   |                                                        |
|---------|---|--------------------------------------------------------|
| 25      | Q | You mentioned your hands were occupied. What           |
| Page 19 |   |                                                        |
| 1       |   | was occupying your hands at the time?                  |
| 2       | A | I was carrying my bag, and in my right hand I          |
| 3       |   | was carrying a can with drink.                         |
| 4       | Q | So in your right hand you were carrying a              |
| 5       |   | drink, and then you had your bag in your left hand; is |
| 6       |   | that correct?                                          |
| 7       | A | Yes.                                                   |
| 8       | Q | And what type of bag were you carrying?                |
| 9       | A | My personal bag.                                       |

Plaintiff's purported dispute to the fact that that "her hands were occupied at the time of the incident" is not supported by the evidence and Defendant's assertion that this fact is undisputed is supported by the evidence. The Court will treat UMF No. 5 as undisputed.



*UMF No. 9*

UMF No. 9 states that “Plaintiff saw the stone base as she descended the stairwell, prior to the subject incident.” Again, Plaintiff states that this fact is “Disputed,” and cites to unspecified “Deposition Transcript Excerpts” from her deposition. (Response to UMF No. 9.) In support of UMF No. 9, Defendant cites to Plaintiff’s deposition transcript at p. 18:1-3, 21:11-13, which provide as follows:

p. 18:1-3

|   |                                      |                        |
|---|--------------------------------------|------------------------|
|   |                                      | Page 18                |
| 1 | MR. BACHICHA: Q                      | Was the cigarette base |
| 2 | visible as you came down the stairs? |                        |
| 3 | A                                    | Yes.                   |

p. 21:11-13

|    |                    |                                             |
|----|--------------------|---------------------------------------------|
| 11 | Q                  | Did you see the cigarette holder before you |
| 12 | had tripped on it? |                                             |
| 13 | A                  | Yes.                                        |

Plaintiff’s purported dispute of the fact that she “saw the stone base as she descended the stairwell prior to the subject incident” is not supported by the evidence and Defendant’s assertion that this is an undisputed fact is supported by the evidence. The Court will treat UMF No. 9 as undisputed.

*UMF No. 10*

UMF No. 10 provides that “[t]he stone base is usually located in the area wherein the subject incident occurred and is usually propping the door open.” Plaintiff asserts that this is “[d]isputed In Part as the stone base was used to prop open the door for years.” (Response to UMF No. 10.) Plaintiff cites page 33, lines 15-22 of Plaintiff’s deposition as support of its dispute of UMF No. 10. Those lines are as follows:

p. 33:15-22

15 Q -- the ashtray that was inside of the doorway  
16 of your building that day, is it always blocking the  
17 door or is it sometimes outside the door on the other  
18 side?  
19 A It's always blocking the door.  
20 Q Okay. And your manager, has he visited the  
21 building while the ashtray has been blocking the door?  
22 A Yes.

Defendant cites page 18, lines 4-8 of Plaintiff's deposition as support of UMF No. 10. Those lines are as follows:

p. 18:4-8

|   |   |                                               |
|---|---|-----------------------------------------------|
| 4 | Q | Where was the cigarette base usually located? |
| 5 | A | In the area where it is.                      |
| 6 | Q | So would the cigarette holder usually be used |
| 7 |   | to prop open the door?                        |
| 8 | A | Yes.                                          |

The Court finds that Plaintiff's response is not an actual dispute because "the stone base being used to prop open the door for years" does not contradict that it was "usually located in the area wherein the subject incident occurred" and "usually propping the door open." Further, Defendant's cited evidence directly supports the proposition. The Court will treat UMF No. 10 as undisputed.

#### *UMF No. 11*

UMF No. 11 provides that "Plaintiff had seen the stone base prior to the subject incident located wherein the subject incident occurred and had never seen the stone base located in any other location." Plaintiff disputes this in part "because the stone base urn was placed in different positions to prop open the self-closing security door." (Response to UMF No. 11.) Plaintiff cites page 33, lines 15-22 of Plaintiff's deposition as support. Those lines are as follows:

p. 33:15-22

15 Q -- the ashtray that was inside of the doorway  
16 of your building that day, is it always blocking the  
17 door or is it sometimes outside the door on the other  
18 side?  
19 A It's always blocking the door.  
20 Q Okay. And your manager, has he visited the  
21 building while the ashtray has been blocking the door?  
22 A Yes.

Defendant cites page 18, lines 9-16 of Plaintiff's deposition as support for UMF No. 11. Those lines are as follows:

p. 18:9-16

9 Q Before this incident occurred had you ever  
10 seen this cigarette base holder before?  
11 A Yes.  
12 Q And where had you seen the cigarette holder  
13 before?  
14 A In that location in front of the door.  
15 Q Had you ever seen it in any other location?  
16 A No.

Plaintiff's cited evidence does not create a dispute with UMF No. 11. Further, Defendant's cited evidence supports the proposition. The Court will treat UMF No. 11 as undisputed.

#### *UMF No. 13*

UMF No. 13 provides that "[a]t no time prior to the subject incident was Defendant Eric Tu made aware of any issues with the stone base object." Plaintiff states that this fact is "Disputed: Defendant," and does not provide any additional information. (Response to UMF No. 13.) In support of UMF No. 13, Defendant cites to the Declaration of Eric Tu, which provides as follows:

26 5. At no time prior to the subject incident was I made aware of any dangerous  
27 wherein the subject incident occurred.

Again, Plaintiff failed to cite any evidence supporting her asserted that this fact is disputed. Defendant's proposition is supported by the evidence. The Court will treat UMF No. 13 as undisputed.

Thus, in light of the analysis above, the court finds there are no legitimate disputes as to any of Defendant's 13 undisputed material facts.

## **Discussion**

### **Summary of Arguments**

Defendant argues that Plaintiff cannot establish actual or constructive notice of any dangerous condition, the alleged defect was open and obvious, and Plaintiff was not exercising due care at the time of the incident. (MPA ISO MSJ, pp. 5:25-8:6.)

Plaintiff argues that summary adjudication is improper when all the elements of Plaintiff's cause of action can be established, Defendant's separate statement is not code-compliant, and that there is a triable issue of material fact relating to whether Defendant's policies created an unsafe condition that cause Plaintiff's injuries and whether Defendant had actual or constructive notice about the alleged unsafe condition. (Opposition, pp. 6-11.) Plaintiff also argues that there is still necessary discovery that needs to be completed. (*Id.* at pp. 11-12; Oviedo Decl. ISO Opposition, ¶ 11.)

On reply, Defendant argues that Plaintiff cannot defeat summary judgment with an attorney declaration, that Plaintiff mixes up notice of an object with notice of a dangerous condition, that the condition was open and obvious, and plaintiff actually saw it before she fell. (Reply, pp. 2-5.) Defendant further argues that Plaintiff caused the incident herself by holding items in both her hands and trying to open the gate with her foot, that unspecified Fire Code references do not save Plaintiff's case, that Plaintiff's Google Maps images do not create a triable issue, that any lack of inspections or defined smoking areas are not relevant, that Plaintiff's request for a continuance should be denied, and that the procedural attack on Defendant's separate statement elevates form over substance. (*Id.* at pp. 5-9.)

### **Analysis**

"The pleadings play a key role in a summary judgment motion and set the boundaries of the issues to be resolved at summary judgment. [Citation.] [T]he scope of the issues to be properly addressed in [a] summary judgment motion is generally limited

to the claims framed by the pleadings. [Citation.] A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading, with respect to new theories that could have been pled, but for which no motion to amend or supplement the pleading was brought, prior to the hearing on the dispositive motion.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444, internal quotations omitted.)

Here, the Complaint alleges that Defendant negligently created or allowed a dangerous condition to exist on the Property and failed to remedy or warn Plaintiff of that dangerous condition. (Complaint, ¶¶ 6-7.)

However, the undisputed evidence shows that the “danger” was open and obvious and that Plaintiff had seen the object before and knew it was often in that location and even saw the object while she was walking towards it. (UMF Nos. 9, 10, 11.) “Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. [Citation.] In that situation, owners and possessors of land are entitled to assume others will perceive the obvious and take action to avoid the dangerous condition.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447, internal quotations omitted.) As the “danger” here was open and obvious and known by Plaintiff and even seen prior to the incident, generally, there would be “no further duty to remedy or warn of the condition.” (*Ibid.*) This would be the end of Plaintiff’s case as the Complaint alleges liability based on Defendant’s failure to warn or remedy the alleged dangerous condition. (Complaint, ¶¶ 6-7.)

However, this is not the end of the analysis. Courts have recognized that a duty to remedy may still exist under certain circumstances. The Court in *Johnson v Raytheon Co.* (2019) 33 Cal.App.5th 617 held, “[T]here may be situations ‘in which an obvious hazard, for which no warning is necessary, nonetheless gives rise to a duty on a landowner’s part to remedy the hazard because knowledge of the hazard is inadequate to prevent injury.’ [Citation.] This is so when, for example, the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that, under the circumstances, a person might choose to encounter the danger.” (*Johnson v. Raytheon Co.* (2019) 33 Cal.App.5th 617, 632.) This is colloquially known as the necessity exception to the open and obvious doctrine. Another formulation of it is that “although the obviousness of a danger may obviate the duty to *warn* of its existence, if it is *foreseeable* that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to *remedy* the danger, and the breach of that duty may in turn

form the basis for liability ....” (*Martinez v. Chippewa Enterprises, Inc.* (2004) 121 Cal.App.4th 1179, 1184.) This theory has neither been pled nor argued by Plaintiff. (See Complaint, ¶¶ 1-10, Opposition, pp. 1-12.)

As the scope of Defendant’s initial burden is defined by the pleadings, Defendant has met their initial burden by showing the condition was open and obvious. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18 [“A cross-defendant seeking summary adjudication need only offer evidence to disprove the allegations of the cross-complaint. Should the cross-complainant wish to offer a different factual assertion from that alleged in the cross-complaint, it must move to amend the cross-complaint prior to the hearing on the summary adjudication motion.”].) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code of Civ. Proc., § 437c, subd. (p)(2).) Here, although Defendant has met his burden of showing no duty to warn of the stone base for cigarettes due to it being open and obvious and actually known about and seen by Plaintiff prior to the incident, Plaintiff has failed to meet her burden of showing a duty to remedy nonetheless exists under the necessity exception. Not only did Plaintiff not plead anything about necessity in the Complaint, but she has also offered no argument on this topic in her Opposition. (See Complaint, ¶¶ 1-10, Opposition, pp. 1-12.) This requires the Court to grant Defendant’s Motion.

The Court notes that Plaintiff’s Compendium of Exhibits ISO the Opposition violates California Rules of Court rule 3.1350(g), which provides that “If evidence in support of or in opposition to a motion exceeds 25 pages, the evidence must be separately bound and must include a table of contents.” Here, Plaintiff’s 348-page, 7-exhibit compendium does not contain a table of contents. Further, Plaintiff’s compendium violates California Rules of Court rule 3.1110(f), which provides that “electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” Here, Plaintiff’s compendium does not contain bookmarks to its 7 exhibits. The court cautions Plaintiff’s counsel about its future formatting of voluminous exhibits.

#### *Plaintiff’s Request for Continuance*

Code of Civil Procedure section 437c, subdivision (h), provides that “[i]f it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a

continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” “The nonmoving party seeking a continuance ‘MUST SHOW: (1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]” (*Frazee v. Seely* (2002) 95 Cal.App.4th 627, 633, all caps in original.)

Here, Plaintiff asks for a 437c(h) continuance at the end of her Opposition, but does not identify what facts she needs, only that she would like to depose employees who aided Defendant’s brother in the property management “and or the Deposition of current Tenants to determine if they may also refute the Defendant and his brother’s statements that the Unsafe Condition didn’t exist on the Subject Property for years. . .” (Opposition, p. 12.) In the Oviedo Declaration in support of the Opposition, it is stated that “Defendants have prevented any communication with existing or former tenants to ascertain how long the unsafe condition existed at the Subject Property, or allow depositions of employees who assisted Mr. Vinh Tu in the Subject Properties management, inspection, and repairs prior to the date [of the] incident.” (Oviedo Decl., ISO Opposition, ¶ 12.)

This Court finds that the desire to depose current tenants “to determine if they may refute the Defendant and his brother’s statements that the Unsafe Condition didn’t exist on the Subject Property for years...” (Opposition p. 12) to be speculative and does not find that Plaintiff has shown that there are facts essential to justify the opposition that may exist but could not be presented because of the identified depositions not having taken place. Both the length of time the “unsafe condition” existed at the Property and the inspection, repair, or management history would not change the result of the ruling on this instant Motion because none of those go towards the necessity exception of the open and obvious doctrine. Thus, the Court denies Plaintiff’s request for a Section 437c(h) continuance.

#### *Defendant’s Objections to Plaintiff’s Evidence*

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion.” (Code of Civ. Proc., § 437c, subd. (q).) Here, the Court finds that it need not rule on Defendant’s objections as they are not material to the disposition of this motion.

#### **Ruling**

The Court **GRANTS** Defendant's motion for summary judgment.

4. 9:00 AM CASE NUMBER: C23-02566  
CASE NAME: ALFRED GARZA VS. AMERIT FLEET SOLUTIONS, INC.  
\*HEARING ON MOTION IN RE: APPROVAL OF PAGA SETTLEMENT  
FILED BY: GARZA, ALFRED  
\*TENTATIVE RULING:\*

The Court grants Plaintiff's Unopposed Motion for Approval of PAGA Settlement/Final Judgment. The court shall sign the Proposed Order lodged with the Court on March 13, 2026. The Parties shall file a joint status report and declaration from the Administrator by September 11, 2026, advising the Court of the distribution of settlement funds. **The Court sets September 24, 2026 at 8:30 am in Dept. 32 for an Order to Show Cause re: Compliance with PAGA Settlement.**

5. 9:00 AM CASE NUMBER: C23-02622  
CASE NAME: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC. VS. TOOV, INC.  
\*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT  
FILED BY: LIBERTY BUSINESS ADVISORS OF SAN FRANCISCO, INC.  
\*TENTATIVE RULING:\*

Plaintiff Liberty Business Advisors of San Francisco, Inc.'s Motion for Leave to File a First Amended Complaint ("FAC") is **granted**. Plaintiff shall prepare and submit the order, file and serve notice of entry of order, and file the FAC within 10 days of the hearing.

### **Background**

Plaintiff Liberty Business Advisors of San Francisco, Inc. filed this action against defendant Toov, Inc. to recover broker commissions allegedly owed under two listing agreements, one covering the sale of Toov's gas station business and one covering associated property at 1744 West San Carlos Street in San Jose. Toov had entered into an asset purchase agreement and a companion purchase and sale agreement to sell the business and property to Kesar Petroleum, Inc. Those transactions did not close. Kesar pursued a claim in arbitration against Toov to recover its deposit, and Toov ultimately released the deposit to Kesar, and paid Kesar an additional sum to resolve the dispute. Plaintiff alleges that under the terms of its listing agreements, Toov's default nonetheless triggered an obligation to pay plaintiff commissions in excess of \$225,000. The original complaint, filed against Toov and fictitiously named defendants, pleaded ten causes of action sounding in breach of contract.



Plaintiff now moves for leave to file a FAC. Plaintiff states that it learned during discovery that Toov filed a Certificate of Dissolution (“COD”) with the California Secretary of State on August 5, 2025, in which Naamatollah Zaghi, Toov’s owner and principal officer, declared that Toov’s known debts had been paid to the extent of its assets, and that the corporation had been “completely wound up.” Plaintiff asserts these statements were false because plaintiff’s commission claim was a known liability at the time the COD was filed, and because Toov failed to follow statutory dissolution procedures for notifying potential creditors. Plaintiff further states that discovery revealed Toov and Zaghi transferred the business to 1744 San LLC, an entity it describes as wholly owned by Zaghi, and that 1744 San LLC in turn transferred or leased interests in the business to Synergy 1744 Petroleum, Inc., which now runs the business.

Based on these discovered facts, the proposed FAC would add Zaghi, 1744 San LLC, and Synergy as defendants, add allegations regarding the dissolution and its asserted deficiencies, an alter ego claim against Zaghi, civil conspiracy allegations, and add new causes of action for violation of the Uniform Voidable Transactions Act (“UFTA”) and common law fraudulent transfer, as well as a claim for punitive damages. Plaintiff has not previously sought leave to amend, and no trial date has been set.

On June 29, 2026, Toov filed a memorandum of points and authorities in opposition to the motion.

### **Legal Standards**

Motions for leave to amend are directed to the sound discretion of the Court. (CCP §§ 473(a) (1), 576.) California courts allow great liberality at all stages of the proceeding in permitting the amendment of pleadings to resolve cases on their merits. (*IMO Development Corp. v. Dow Corning Corp.* (1982) 135 Cal. App. 3d 451, 461.) Because the policy favoring amendment is so strong, “[i]t is a rare case in which denial of leave to amend can be justified. Leave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff's claim is clear, but under substantive law, no liability exists and no amendment would change the result.” (*Howard v. County of San Diego* (2010) 184 Cal. App. 4th 1422, 1428.)

Courts may permit amendments at any stage in the proceedings, up to and including trial, so long there is no prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Delay in requesting leave to amend will not support denial of leave to amend unless the delay caused prejudice. (*Higgins v. Del Faro* (1981) 123

Cal.App.3d 558, 564-65.) Prejudice exists where, for example, the amendment would require delaying the trial, resulting in loss of critical evidence or added costs of preparation, increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 468-488.)

Procedurally, a motion to amend must: (1) include a copy of the proposed amendment or amended pleading; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, by page, paragraph, and line number, the additional allegations are located. (California Rules of Court (CRC), rule C 3.1324(a).) Also, a separate declaration must specify: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (CRC 3.1324(b).)

### **Analysis**

The Court notes at the outset that defendant's opposition is supported by no declaration or other evidence. The factual assertions in Defendant's memorandum, including the assertion that 1744 San LLC is capable of satisfying any judgment against Toov and the assertion regarding Zaghi's health, appear only in the unsworn memorandum of points and authorities submitted by counsel. On this basis alone the Court would be justified in disregarding these assertions. But even if the Court were to consider these assertions on the merits, it would still find good cause to grant the motion.

Plaintiff's motion satisfies the procedural requirements of California Rules of Court, rule 3.1324 (see Hammel Decl.), and the Court accordingly turns to the merits. Plaintiff's proposed amendments fall into several categories. The first concerns the addition Naamatollah Zaghi, 1744 San LLC, and Synergy 1744 Petroleum, Inc. as defendants, based on Plaintiff's contention that Zaghi controlled and directed the conduct at issue, and that the entities received and now operate the business through transfers plaintiff learned of during discovery. The second concerns new allegations regarding Toov's dissolution, including the circumstances of the filing, statements Zaghi made in the COD, and plaintiff's claim that Toov failed to follow procedures applicable to a voluntary dissolution. The third concerns new theories of liability, including alter ego against Zaghi and conspiracy allegations against all defendants. The fourth concerns new causes of action for violation of the UVTA and common law fraudulent transfer, and the addition of punitive damages, based on plaintiff's

contention that transfers of the business to 1744 San LLC, and then to Synergy, were made to hinder or delay plaintiff's recovery.

As to the new parties and the alter ego theory, defendant argues that plaintiff has offered no evidentiary support for piercing the corporate veil, and that the proposed allegations amount to conclusory assertions that corporate formalities were not followed (and for which defendant claims there is no evidentiary support). As to the corporate dissolution allegations, defendant argues that dissolution does not by itself impose personal liability on an officer or owner. As to the proposed fraudulent transfer claims, defendant argues that plaintiff has pointed to no evidence of a fraudulent transfer, and that such claims should in any event await resolution of the underlying commission dispute.

In ruling on a motion for leave to amend, courts generally do not consider the amended pleading's merits. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760; Weil and Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2024) ¶ 6:644 ["Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading"].) Defendant's arguments regarding the sufficiency of the alter ego allegations, the legal effect of a corporate dissolution standing alone, and whether there is evidentiary support for a fraudulent transfer claim go to the merits of the proposed amendments and are properly raised at a later stage of the litigation.

Defendant argues that Zaghi was recently diagnosed with dementia such that it would be unjust to require him to defend this case personally and without the assistance of his family. This assertion appears only in defendant's memorandum and is not supported by any declaration from Zaghi, a family member, a treating physician, or other person with knowledge of the condition. Setting aside the lack of proof, this argument does not bear on whether plaintiff should be given leave to amend. If Zaghi needs assistance to participate in this litigation, that circumstance is addressed through the mechanisms available once he is made a defendant, including the appointment of a guardian ad litem, if required. Similarly, to the extent defendant believes the fraudulent transfer claims should be resolved after the underlying liability dispute is tried, that concern is properly raised through a motion to bifurcate or other appropriate case management motion.

Defendant contends that adding new parties and claims will require a new round of discovery and delay resolution of a case pending since October 2023. Plaintiff did not

delay, as the facts giving rise to these amendments were recently discovered. But even so, delay by itself is not a ground to deny leave to amend unless it results in specific prejudice such as the loss of critical evidence or the unavailability of a witness. Defendant has not made that showing.

There is no basis in the record for finding that delay has prejudiced an opposing party. There is no trial date, so defendants will have sufficient time to respond to the amended complaint and prepare for trial on the new allegations. The Court therefore exercises its discretion to permit the amendment.

### **Disposition**

Plaintiff's motion is **granted**. Plaintiff shall prepare and submit the order, file and serve notice of entry of order, and file the FAC within 10 days of the hearing.

6. 9:00 AM CASE NUMBER: C24-01396  
CASE NAME: JESUS TORRES VS. CHICAGOS PIZZA IP HOLD CO., LLC  
\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: KATHLEEN E. FINNERTY  
FILED BY: CHICAGOS PIZZA IP HOLD CO., LLC  
**\*TENTATIVE RULING:\***

The unopposed motion of attorney **KATHELEEN E. FINNERTY** to be relieved as counsel for **CHICAGO'S PIZZA HOLD CO., LLC** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

**CHICAGO'S PIZZA HOLD CO., LLC'S** Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of

**CHICAGO'S PIZZA HOLD CO., LLC'S** counsel to be Relieved as Counsel of Record. This motion is **Granted**.

**CHICAGO'S PIZZA HOLD CO., LLC** MUST TAKE NOTICE THAT AN LLC CANNOT REPRESENT ITSELF IN COURT, AND MAY APPEAR ONLY THROUGH AN ATTORNEY.

The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the change that the next Court date is September 8, 2026 at 8:30 am for Case Management Conference. The withdrawal is effective upon **KATHELEEN E. FINNERTY** filing the proof of service of signed order on the client and all parties.

7. 9:00 AM CASE NUMBER: C24-02540  
CASE NAME: MONICA JOHNSON-BLAIR VS. BENJAMIN GREER, MD  
HEARING ON DEMURRER TO: RE 3RD AMENDED COMPLAINT  
FILED BY: EQUITY HR, INC.

**\*TENTATIVE RULING:\***

Defendant Equity HR's demurrer to the operative Third Amended Complaint filed January 22, 2026 is **overruled**. Defendant has ten days from the notice of entry of order to file their answer.

In the Third Amended Complaint filed January 22, 2026 (see notice of errata), Plaintiff is suing for (1) constructive tortious discharge in violation of public policy, (2) gender discrimination, (3) harassment based on gender, (4) failure to prevent discrimination and harassment, (5) violation of Labor Code section 1102.5, (6) violation of Labor Code section 6310-6311, (7) assault, (8) intentional infliction of emotional distress and (9) unfair business practices. Plaintiff alleged that her boss, Dr. Greer, engaged in unlawful harassment and discrimination. Plaintiff has sued Equity HR under a joint employer theory.

Defendant demurs to every cause of action based upon the failure to allege sufficient facts to state a cause of action, Code of Civil Procedure section 430.10(e).

Causes of Action 1 to 6 (Joint Employer Issue)

As to the standard employment claims, Defendant argues that they should not be considered an employer in this case because they are alleged to be one of three joint employers and there are no facts supporting Defendant Equity as an employer.

“California law specifies the elements necessary to define an employer. ‘To employ’ has ‘three alternative definitions.’ (*Martinez v. Combs* (2010) 49 Cal.4th 35, 64.) ‘It means: (a) to exercise control over the wages, hours or working conditions, or (b) to suffer or permit to work, or (c) to engage, thereby creating a common law employment relationship.’ (*Ibid.*) [] The broad definition of an employer includes “‘any person ... who directly or indirectly, or through an agent or any other person, employs or exercises control over the wages, hours, or working conditions of [an employee].’” [Citation.]” (*Castaneda v. Ensign Group, Inc.* (2014) 229 Cal.App.4th 1015, 1019.)

“ ‘There is no magic formula for determining whether an organization is a joint employer. Rather, the court must analyze “myriad facts surrounding the employment relationship in question.” [Citation.] No one factor is decisive. [Citation.]’ [Citation.]” (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 124-125.)

Defendant points out that “a payroll company, or any other person or entity that processes payroll, is not an employer because he, she, or it, does not control the hiring, firing, and day-to-day supervision of workers supplying the labor.” (*Futrell v. Payday California, Inc.* (2010) 190 Cal.App.4th 1419, 1433.) In reply, Defendant cites to *Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817. But in *Goonewardene*, as in *Futrell*, the defendant was alleged to provide payroll services. (*Id.* at 822.)

Defendant also cites a California district court case, where a payroll processing company was dismissed. (*Valencia v. North Star Gas Ltd. Co.* (2018) 291 F.Supp.3d 1155.) *Valencia* is not binding on this Court and in any event, *Valencia* is another case involving a payroll processing company. The allegations that the company went beyond payroll were found to be too conclusory. The facts alleged here go beyond Defendant acting as a payroll company and include allegations that Defendant provided additional employment services.

In the TAC, Plaintiff alleges that Equity HR provides comprehensive human resources and employment services to its clients and that Equity HR assumed

comprehensive employer functions with respect to covered employees, including Plaintiff. (TAC ¶4 and ¶5.) Plaintiff alleges that Equity HR and Healthmet divided control over the employment relationship as follows: Healthmet directed day-to-day work while EQUITY HR controlled wages, benefits, HR policies, and employment practices. (TAC ¶8.)

Under the HR Services Agreement, Equity HR processes payroll, including withholding taxes; provides workers' compensation insurance and administered claims; provides employee benefits under the Equity-HR sponsored benefit plans; provides human resource consulting services, including guidance on employee discipline and performance reviews, reasonable accommodations and FMLA/CFRA leave; maintains liability insurance for employees. (TAC ¶6.) Under the HR Services Agreement, Equity HR reserved the right of direction and control over Covered Employees and retained the right to hire, discipline, and terminate Covered Employees. (TAC ¶7.)

Defendant points to a 2022 Client Services Agreement and claims that it states that "Client agrees that Execustaff HR is not a joint employer for purposes of liability pursuant to the California Wage Orders, Labor Code, and Government Code." (Quint dec. 11 and ex. 5 (See Addendum ex E at 4(i)).) Defendant has not shown that this document is the same one referred to in the contract, nor has Defendant requested judicial notice of this document. Finally, Defendant has not cited any case law that holds a contract clause such as this one can override other facts showing a joint employer.

Here, Plaintiff has alleged that Defendant Equity HR's functions went beyond those of a payroll processing company. Plaintiff alleges that Defendant provides employee benefits and administers the worker's compensation plan; that Defendant provides guidance on employee discipline, reasonable accommodations and FMLA/CFRA leave; and that Defendant retained the right to hire, discipline, and terminate employees. Given these facts, the Court finds that Plaintiff has alleged facts showing that Equity is a joint employer. Therefore, the demurrer to causes of action one through six is overruled.

Cause of Action 7 (Assault)

For an assault claim, plaintiff must show that (1) the defendant acted with the intent to cause harmful or offensive contact, or threatened to touch Plaintiff in a harmful or offensive manner; (2) Plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to Plaintiff that the defendant was about to carry out the threat; (3) Plaintiff did not consent to defendant's conduct; (4) Plaintiff was harmed; and (5) the defendant's conduct was a substantial factor in causing Plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 652, 668-669.)

Defendant argues that there are no facts showing intent to cause harm or that Plaintiff reasonably believed she was about to be touched or harmed.

In the previous demurrer, the Court agreed with Defendant that there was no showing that Equity was involved in the alleged assault. Plaintiff now alleges that Equity is liable for the assault as a joint employer and pursuant to the doctrine of respondeat superior as Greer's conduct occurred within the course and scope of his employment with Defendant Employer. (TAC ¶153.) Plaintiff also alleges that Greer is the managing agent, officer and/or supervisor of the Defendant Employer and Defendant Employer is defined to include both Equity HR and Healthmet. (FAC ¶¶ 9. 14.)

Plaintiff alleges that Defendant is liable for Greer's actions because the assault occurred within the course and scope of employment, including several incidents that occurred at the office while Plaintiff was working. (TAC ¶152.) Further, Plaintiff sufficiently alleges that she reasonably believed she was about to be touched in a harmful or offensive manner by Greer, including Greer grabbing the phone out of Plaintiff's hands, standing 8 or 9 inches from Plaintiff's face, lunging toward Plaintiff and throwing objects at Plaintiff. (TAC ¶152.) Based upon the arguments raised in the moving papers, Defendant's demurrer is overruled.

Defendant did not cite any authority regarding respondeat superior liability involving assaults in the moving papers. In reply, Defendant relies on *Fretland v. County of Humboldt* (1999) 69 Cal.App.4th 1478 for the proposition that "the doctrine of respondeat superior cannot be used to extend the Labor Code section 3602(b)(1) assault exception to an employer for another party's assault." (*Id.* at 1486.) Labor Code section 3602 is part of the workers' compensation statutory scheme. Defendant



cannot wait until reply to raise new issues that could have been raised in the moving papers. Defendant may raise this argument in a future motion, but the Court will not rule on it now.

#### Cause of Action 8 (IIED)

As to the intentional infliction of emotional distress claim (cause of action eight), Defendant argues that the facts alleged are insufficient to state an IIED claim and that there are no facts as to Equity.

“ ‘The elements of the tort of intentional infliction of emotional distress [IIED] are: “ ‘(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. ...’ Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” ’ [Citation.] ‘Liability for intentional infliction of emotional distress “ ‘does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.’ ” ’ [Citation.]” (*Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 101-102.)

The Court finds, as it did in its previous ruling, that the facts alleged are sufficient to show extreme and outrageous conduct.

The remaining question is whether the facts alleged show how Equity could be liable for Greer’s conduct. Defendant’s argument focuses on whether it was directly responsible for IIED. Plaintiff alleged that Defendant is liable under the respondeat superior doctrine (TAC ¶158) and Defendant did not address that theory until reply. Defendant may raise this argument in a future motion, but the Court will not rule on it now.

The demurrer to cause of action eight is overruled.

#### Cause of Action 9 (Unfair Competition)

Defendant argues that the unfair competition claim (cause of action nine) fails because the other claims fail. Since the Court finds that Plaintiff has alleged other claims against Defendant, the demurrer to this claim is overruled.

### Reply

For the first time in reply, Defendant argues that all causes of action fail because there are no allegations that Defendant was on notice as to Plaintiff's complaints or Greer's alleged conduct. This issue should have been raised in the moving papers and the Court will not consider it now.

### Judicial Notice

Plaintiff's requests for judicial notice are granted.

8. 9:00 AM CASE NUMBER: C25-00220  
CASE NAME: FRANCIS FANELLI VS. MICHAEL BENJAMIN  
\*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT  
FILED BY: FANELLI, FRANCIS  
**\*TENTATIVE RULING:\***

Before the Court is a motion by plaintiff Francis Fanelli for leave to file a first amended complaint. For the reasons set forth, the motion is **granted**. Plaintiff shall file and serve his first amended complaint by **no later than July 24, 2026**.

### **Background**

Plaintiff Francis Fanelli filed his complaint initiating this action on January 25, 2025. His original complaint alleges that on March 19, 2024, defendants' 14-year old son was walking their 80 pound German Shepherd. He alleges that the dog has a history of aggression and attacks on neighbors, that the son lost control of the dog which was no longer restrained by a leash, and that the dog attacked, knocked down, and bit Plaintiff and Plaintiff's small dog, injuring both of them. (Compl. ¶¶ 7-10.) The original complaint alleges three causes of action against defendants Michael Benjamin and Qing Jin, the alleged owners of the dog and parents of the 14-year old, including negligence, vicarious liability as the parents of the minor, and strict liability for violation of the Contra Costa County leash law.

Plaintiff filed his motion for leave to file a first amended complaint on March 9, 2026. Plaintiff's proposed first amended complaint (Kraft Decl. Exh. 1) adds a claim for punitive damages. On June 25, 2026, the Court held a case management conference

at which the Court set an issue conference for May 21, 2027 and a jury trial to commence June 1, 2026. Defendants oppose the motion.

### **Legal Standards for Motion for Leave to Amend**

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"]; Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

### **Analysis**

Plaintiff has attached to the Kraft Declaration a redlined version of the proposed first amended complaint ("FAC") marked to show the changes from the original complaint. (Kraft Decl. Exh. 1; Cal. R. Ct., Rule 3.1324(a).) Plaintiff seeks to add a claim for punitive damages, including the factual allegations which he contends supports such a claim, and an additional paragraph in the prayer for relief to include punitive damages. (Prop. FAC ¶¶ 26-34; Kraft Decl. ¶ 6.) Kraft declares that the effect of the amendment is that Plaintiff is seeking to add a claim for punitive damages, which explains why the amendment is necessary, i.e., in order for Plaintiff to attempt to recover punitive damages. (Kraft Decl. ¶ 6; Cal. R. Ct., Rule 3.1324(b)(1) and (2).) Kraft declares in substance that the facts alleged in the proposed FAC to support the punitive damages claim were obtained during discovery (Kraft Decl. ¶ 5), a time frame that is limited in this case; the Court's Odyssey records show the defendants answered the complaint on March 10, 2025, and the motion for leave to amend was filed on March 9, 2026. By implication, the discovery of the new facts alleged during discovery explains why the motion was not made earlier and why the facts were not

included in the original complaint. (Kraft Decl. ¶ 5; Cal. R. Ct., Rule 3.1324(b)(3) and (4).)

**A. Sufficient Compliance with California Rule of Court, Rule 3.1324**

The Court finds the motion and the Kraft Declaration substantially comply with the requirements of Rule 3.1324. Plaintiff has cited no authority, and the Court is not aware of any authority, which mandates strict compliance with Rule 3.1324 or would support denial of leave to amend for noncompliance in these circumstances.

**B. Delay**

Defendants argue there was undue delay in Plaintiff moving to amend because Plaintiff was aware of the dog's prior aggressive encounters with both Plaintiff and neighbors before he filed his complaint. (Opp. p. 4; Park Decl. ¶¶ 4-6.) Plaintiff's original complaint alleged those prior incidents. (Compl. ¶¶ 7, 8.)

The Proposed FAC includes additional factual allegations regarding Defendants' knowledge of the dog's dangerous propensities and lack of responsiveness to verbal commands, their knowledge that their son is unable to effectively control the dog and that their son's walking the dog posed risks to other persons and dogs walking in the neighborhood, and their disregard of, or indifference to, the risks their dog, and their son walking the dog, posed to others in light of their knowledge of the dog's aggressive tendencies. (FAC ¶¶ 26-34.) The Kraft Declaration refers specifically to deposition testimony by Defendant Benjamin, by Defendants' son, and by their neighbor, as the information obtained in discovery from which the new allegations and claim for punitive damages spring. (Kraft Decl. ¶ 5.)

The evidence does not support that Plaintiff unduly delayed in moving for leave to amend. In any event, delay alone is generally not a ground for denying leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].)

**C. Prejudice**

Defendants claim prejudice and cite the trial date which has now been set for June 1, 2027. The trial date was set at a case management conference held on June 25, 2026 at which defendants counsel appeared and which was held one day before they filed their opposition to this motion. Defendants have presented no evidence of prejudice in the Park Declaration in opposition to the motion, only evidence related to alleged delay. (Park Decl. ¶¶ 4-6.) There is no evidence that the amendment will require a delay in the trial date set 11 months from now, that there has been any loss of critical

evidence since the complaint was filed and defendants' answered, that the amendments in the Proposed FAC open an "entirely new field of inquiry," or if they do require new discovery, that Defendants will not have adequate time to propound discovery to address them. (Opp. pp. 3-4.)

Defendants argue in their opposition, without evidentiary support in the Park Declaration, that the fact witnesses have all been deposed, but Defendants do not argue that they will need to conduct additional depositions of any of those witnesses to address the new allegations in the FAC. Merely having to defend the new claim is not the type of prejudice that warrants denial of leave to amend under California's liberal policy of allowing amendments. (*Compare to Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery].)

**9. 9:00 AM CASE NUMBER: C25-00423**  
**CASE NAME: VAUGHN BERNARD VS. GONSALVES & SANTUCCI, INC.**  
**\*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT**  
**FILED BY: GONSALVES & SANTUCCI, INC.**  
**\*TENTATIVE RULING:\***

The unopposed motion of Defendant and Cross-complainant Gonsalves & Santucci, Inc. dba the CONCO Companies (CONCO) for leave to file a First Amended Cross-Complaint is granted. CONCO shall serve notice of entry of this order on all parties and must separately file its First Amended Cross-Complaint within 15 days of today's order.

**10. 9:00 AM CASE NUMBER: C25-01427**  
**CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,**  
**HEARING ON ORDER TO SHOW CAUSE IN RE: WHY SANCTIONS OF \$2,000 SHOULD NOT BE**  
**IMPOSED ON PLAINTIFF'S COUNSEL: JASON W. ESTAVILLO AND ELIZABETH HURWITZ**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Before the Court is its own Order to Show Cause issued to attorneys of record James W. Estavillo (188093) and Elizabeth L. Hurwitz (278846) on May 21, 2026.

The order to show cause stated:

The court orders attorney Jason W Estavillo (188093) and Elizabeth L Hurwitz (278846) to appear on Friday, July 10, 2026 at 9:00 a.m. in Dept. 32 of the Contra Costa Superior Court, and show cause, if cause there be, why \$2000 in monetary sanctions should not be imposed jointly and severally for failure to obtain an Order Granting Attorney's Motion to be Relieved as Counsel after the Court's tentative ruling was adopted on December 26, 2025, failure to serve Plaintiff August Blass with an Order Granting Attorney's Motion to be Relieved as Counsel on mandatory Judicial Council form MC-053 and file proof of service of that order with the court, and failure to give Plaintiff advance notice of the Case Management Conference set for May 19, 2026.

Counsel Estavillo responded on July 6, 2026. He states that the Proposed Order Granting Attorney's Motion to be Relieved as Counsel, submitted on August 29, 2025, was not signed by the court.

The court has checked the file. The Motion to be relieved as counsel was approved by the unopposed tentative ruling of Judge Douglas which became the order of the court on December 26, 2026. That tentative stated, "The motion to be relieved as counsel is granted and shall be effective upon the filing of the proof of service of the signed order upon the client."

The Court has reviewed the file and agrees with Counsel Estavillo that it does not appear that the court ever signed or filed the order.

Counsel Estavillo referred to the concurrent submission of a new proposed Order Granted Attorney's Motion to be Relieved as Counsel on form MC-0453, which the court did not locate as concurrently filed.

Therefore:

[1] The court **discharges** the OSC without sanction.

[2] The Court **vacates July 23, 2026** which was previously set as a date for further Case Management Conference. The court **sets the date of August 11, 2026 at 8:30 am** for further Case Management Conference in Dept. 32. Parties must file and serve a Case Management Conference Statement 10 days in advance of August 11, 2026.

[3] The court orders Counsel Estavillo to submit a new proposed Order Granted Attorney's Motion to be Relieved as Counsel on form MC-0453, showing the next hearing date to be August 11, 2026 at 8:30 am Dept. 32, at 725 Court Street, Martinez, CA 94553. This new proposed order must be lodged with the court within 5 court days of this hearing.

The court intends to sign that order and order that it be effective upon proof of service of notice of entry of the order.

11. 9:00 AM CASE NUMBER: C25-03207

CASE NAME: ADRIANA ROBLES VS. DAVID ALEXIS

\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SHAUN J. BAUMAN, ESQ.

FILED BY: ROBLES, ADRIANA

\*TENTATIVE RULING:\*

The unopposed motion of **Shaun J. Bauman** to be relieved as counsel for **Plaintiff Adriana Robles** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

**Plaintiff Adriana Robles'** counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating

the reasons for withdrawal. After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

This motion is **granted**.

The Court will execute the Proposed Order Granting Attorney **Shaun J. Bauman's** Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted with the modification that the next court date is October 14, 2026 for CMC in Dept. 32. The

withdrawal is effective upon **Shaun J. Bauman's** filing the proof of service of signed order on the client and all parties.

**12. 9:00 AM CASE NUMBER: C25-03681**  
**CASE NAME: ROSSMOOR RETAIL PARTNERS, LLC VS. DELITHA HENSON**  
**HEARING ON DEMURRER TO: ANSWER**  
**FILED BY: ROSSMOOR RETAIL PARTNERS, LLC**  
**\*TENTATIVE RULING:\***

VACATED BY FILING OF AMENDED ANSWER.

**13. 9:00 AM CASE NUMBER: C25-03717**  
**CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION**  
**\*HEARING ON MOTION IN RE: NTC AND MTN FOR STRIKING PORTIONS OF COMPLAINT**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Plaintiff filed a "Motion for Striking Portions of Complaint" (MTS) on March 23, 2026. She writes that she "denies generally and specifically, each and every allegation and cause of action set forth in the complaint. In addition, Plaintiff denies that defendant is entitled to relief sought in the complaint or any relief whatsoever, as against Plaintiff."

Plaintiff does not appear to be moving to strike anything in her Complaint. Plaintiff's MTS was filed two weeks after Defendant filed its Answer on March 9, 2026. It appears that Plaintiff repeats the allegations in the Answer and purports to respond to each of the affirmative defenses by asserting them as "affirmative defenses" of her own.

The motion makes no procedural sense and is unaccompanied by a memorandum of points and authorities. There is no logical or legal argument contained in the moving papers.

The MTS is **denied**.

**14. 9:00 AM CASE NUMBER: C26-00155**  
**CASE NAME: JANE DOE VS. DANTE WESTBROOK**  
**\*HEARING ON MOTION IN RE: QUASH SERVICE**  
**FILED BY: WESTBROOK, DANTE**  
**\*TENTATIVE RULING:\***

The hearing on this matter is continued until Friday, July 17, 2026, at 9:00 a.m.



15. 9:00 AM CASE NUMBER: C26-00207  
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI  
STRIKE COMPLAINT  
FILED BY: KALNYTSKYI, ROMAN  
**\*TENTATIVE RULING:\***

Before the Court is Defendant Roman Kalnytskyi's Special Motion to Strike Complaint (Anti-SLAPP)(Code Civil Proc. § 425.16)

The hearing is **continued until August 21, 2026**, as set forth below.

### **Procedural Background**

Plaintiff Andrei Romanenko filed his complaint on January 20, 2026, for defamation and associated causes of action related to alleged false statements made about him by Defendant Kalnytskyi on various websites.

Defendant Kalnytskyi filed his Special Motion to Strike on March 11, 2026. Two days later, on March 13, 2026, Plaintiff sought and the Court entered a default against Defendant Kalnytskyi. On May 1, 2026, Defendant Kalnytskyi filed a motion to set aside the default. The hearing for that motion is set for September 18, 2026.

On May 5, 2026, Plaintiff sought and the Court entered a default against Defendant Akrian, Inc. A motion to set aside the Default against Akrian, Inc. was filed by Defendant Kalnytskyi on May 13, 2026. That hearing is also currently scheduled for September 18, 2026.

### **Analysis**

#### **Jurisdiction to Hear the Motion**

As noted above, a default was entered against Defendant Kalnytskyi on March 13.

"The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (*Devlin v. Kearny Mesa Amc/Jeep/Renault* (1984) 155 Cal.App.3d 381, 385.)

"A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial or demand notice of subsequent proceedings." (*Id.* at 385-86 quoting *Brooks v. Nelson* (1928) 95 Cal.App. 144, 147-48.)

Once a default is entered, the Court loses "jurisdiction to do anything but enter the default and judgment." (*W.A. Rose Co. v. Municipal Court for Oakland-Piedmont Judicial Dist.* (1959) 176 Cal.App.2d 67, 72.)

Based on the above, the Court cannot rule on Defendant's Special Motion to Strike until the default is set aside – if that occurs. As such, the hearing on this matter shall

be continued until after the hearing on the motion to set aside Mr. Kalnytskyi's default.

### **Scheduling**

Special motions to strike, *i.e.* anti-slapp motions, are to be heard on an expedited basis. (See Code Civ. Proc. § 425.16(f).) The motion to set aside is currently scheduled for September 18, 2026. The Court on its own motion will advance the hearing on the motion to set aside filed by Mr. Kalnytskyi to **August 14, 2026**. The hearing on the Special Motion to Strike will be continued until **August 21, 2026**. Plaintiff's opposition to the motion to set aside default is due August 3, 2026. Defendant's Reply, if any, is due on or before August 7, 2026.

### **Akrian, Inc.'s Motion**

The Court notes that Defendant Akrian, Inc. is also currently in default and that a motion to set aside has been filed on its behalf. **The court notes that Defendant Akrian, Inc., must be represented in court by an attorney and Mr. Kalnutsyki cannot represent Akrian, Inc. in court.** As a matter of efficiency, the Court will also reschedule the hearing on the motion to set aside Akrian, Inc.'s default to **August 14, 2026**.

### **Conclusion**

The hearing on this motion is continued as follows:

- The hearings on both Defendant Kalnytskyi and Defendant Akrian, Inc.'s motions to set aside default are advanced to **August 14, 2026**, at 9:00 a.m.
- Plaintiff's oppositions to the motions to set aside are due on or before August 3, 2026. Plaintiff may file a joint opposition if he so desires.
- Defendant's reply, if any, is due on or before August 7, 2026.
- The hearing on Defendant Kalnytskyi's Special Motion to Strike is continued until **August 21, 2026**.

### **Discovery Law & Motion**

16. 9:01 AM CASE NUMBER: C25-02614  
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,  
COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE  
FILED BY: BMW OF NORTH AMERICA, LLC,  
**\*TENTATIVE RULING:\***

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Form Interrogatories, Set One and for

Monetary Sanctions is before the Court (Motion). Defendant included a sufficient description of its attempts to meet and confer with Plaintiff on February 10, February 18, March 5, and March 6 of 2026 prior to filing its motion. (Declaration of Danielle D. Greenstein, attached to Motion at page 10: 16 – 11: 6, and Exs. C, D, E, and F.) Despite those meet and confer communications, Plaintiff had not, as of the time of the filing of the Motion, served supplemental responses to Form Interrogatories Nos. 3.0, 7.1, and 9.1. (Greenstein Dec., page 11: 7-9.) Defendant requests \$1,260 in attorneys fees and costs.

Plaintiff opposes the motion stating that Plaintiff's counsel was "recently assigned" to this case, "having taken it over from the previous attorney." (Plaintiff's Memorandum of Points and Authorities in Opposition to Defendant's Motion to Compel Responses to Form Interrogatories, Set One (Opp.), filed June 26, 2026, at 2: 12-15.) Plaintiff's counsel states that promptly reviewed the file, but "inadvertently overlooked" a March 6, 2026 email from Defendant's counsel providing her availability. (Opp. 13-15.) Plaintiff declared an intention to serve supplemental responses to form Interrogatories Nos. 3.0, 7.1, and 9.1 "prior to the hearing on this motion." (Opp. 21-22) Plaintiff asserts this motion will be moot by the time of the hearing on July 10, 2026 and requests that the Court not impose sanctions. (Opp., 2: 22-23; 3:23-24.)

Defendant acknowledges in Reply that Plaintiff served supplemental responses on June 30, 2026, four days after the Opposition was filed on June 26. Defendant argues that Plaintiff's change of counsel within the same law firm does not constitute substantial justification for the failure to meet and confer nor for deficient discovery responses.

The Court agrees with the Defendant. Lawyers at the same law firm received four meet and confer communications from defense counsel in a period of four weeks and made no response. Plaintiff's counsel asserts an "inadvertently overlooking" of the March 6, 2026 email from Defendant, but offers no explanation for its non-response to the three earlier emails, nor for the initially deficient discovery responses. Plaintiff's argument that Defendant failed to meet and confer because "Plaintiff never heard from Defendant again" after Plaintiff ignored Defendant's four attempts to meet and confer in February and March of 2026, and after Plaintiff "inadvertently overlooked" Defense counsel's last email dated March 6, 2026 defies logic. It assumes the burden would be on Defense counsel to continue to reach out to Plaintiff after the

latter ignored the former's multiple communications for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff offers no justification at all, let alone a substantial one, for its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period.

It is true that the motion to compel is moot regarding the production of supplemental responses, however the issue of sanctions may yet be addressed by the court.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the requested discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to pay Defendant's counsel \$1200 in attorneys fees and \$60 in costs. Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

**17. 9:01 AM CASE NUMBER: C25-02614**  
**CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,**  
**COMPEL PLAINTIFF D&A TRANS, INC.'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE**  
**FILED BY: BMW OF NORTH AMERICA, LLC,**  
**\*TENTATIVE RULING:\***

Defendant BMW of North America, LLC (BMW)'s Motion filed March 11, 2026 to Compel Plaintiff's Further Responses to Special Interrogatories, Set One and for Monetary Sanctions is before the Court (Motion). Defendant included a sufficient description of its attempts to meet and confer with Plaintiff on February 10, February 18, March 5, and March 6 of 2026 prior to filing its motion. (Declaration of Danielle D. Greenstein, attached to Motion, ¶¶ 4-7, and Exs. C, D, E, and F.) Despite those meet and confer communications, Plaintiff had not, as of the time of the filing of the Motion, served supplemental responses to Special Interrogatories Nos. 7-14, 18, 19, 20, 21, 22, 23, 24, 25 and 26. (Greenstein Dec., page 13: ¶ 9.) Defendant requests \$1,260 in attorneys' fees and costs.

Plaintiff opposes the motion stating that Plaintiff's counsel was "recently assigned" to this case, "having taken it over from the previous attorney." (Plaintiff's Memorandum of Points and Authorities in Opposition to Defendant's Motion to Compel Responses

to Special Interrogatories, Set One (Opp.), filed June 26, 2026, at 2: 12-15.) Plaintiff's counsel states that promptly reviewed the file, but "inadvertently overlooked" a March 6, 2026 email from Defendant's counsel providing her availability. (Opp. 13-15.) In its Opposition, Plaintiff declared an intention to serve supplemental responses only to Special Interrogatories Nos. 7-14 "prior to the hearing on this motion." (Opp. 21-22) Plaintiff asserts that "Defendant deposed Plaintiff on April 8, 2026" and had a full opportunity to examine Plaintiff regarding the subsequent discovery these interrogatories address." (Opp., 2: 22-26.) Plaintiff states that Defendant "has therefore already obtained the information it seeks directly from Plaintiff, suffers no prejudice and that no court intervention is warranted." (Opp. 2:22-26.)

Defendant did not tailor its Reply pleadings to the arguments pertinent specifically to the Special Interrogatories. Its Memorandum of Points and Authorities merely repeated the arguments pertinent to the Plaintiff's position regarding their responses to the Form Interrogatories.

Plaintiff has failed to raise a valid objection to answering Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26. Merely that a deposition has been taken does not absolve a party from obligations to answer interrogatories. Plaintiff asserts but does not explain how the information sought in Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 was provided in the Plaintiff's deposition. Finally, Plaintiff fails to assert and support a potentially valid objection, such as that the Special Interrogatories Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 are unduly burdensome.

Defendant argues that Plaintiff's change of counsel within the same law firm does not constitute substantial justification for the failure to meet and confer nor for deficient discovery responses. The Court agrees.

The Court agrees with the Defendant. Lawyers at the same law firm received four meet and confer communications from defense counsel in a period of four weeks and made no response. Plaintiff's counsel asserts an "inadvertently overlooking" of the March 6, 2026 email from Defendant, but offers no explanation for its non-response to the three earlier emails, nor for the initially deficient discovery responses. Plaintiff's argument that Defendant failed to meet and confer because "Plaintiff never heard from Defendant again" after Plaintiff ignored Defendant's four attempts to meet and confer in February and March of 2026, and after Plaintiff "inadvertently overlooked" Defense counsel's last email dated March 6, 2026 defies logic. It assumes

the burden would be on Defense counsel to continue to reach out to Plaintiff after the latter ignored the former for over a month. This assertion and its premise are one reason why the Court finds the Plaintiff has failed to act with substantial justification.

Plaintiff argues that Defendant was able to depose Plaintiff in April 2026, but this does not excuse its actions in failing to meet and confer and in failing to provide code complaint responses over a four month period. The court finds that Plaintiff did not act with substantial justification.

Plaintiff's stated intention in its Opposition to provide only partial supplemental responses to Special Interrogatories Nos. 7-14 confirms that the requested discovery was not provided prior to the motion being filed, if it was provided at all.

California Rule of Court 3.1348 provides that sanctions may be imposed even if the discovery was provided after the motion to compel was filed.

The court orders Plaintiff's counsel to provide Defense counsel with code compliant answers to Special Interrogatories, Nos. 18, 19, 20, 21, 22, 23, 24, 25 and 26 within 30 days of service of notice of entry of this order on Plaintiff's counsel.

The court orders Plaintiff's counsel to pay Defendant's counsel \$100 in attorneys fees and \$60 in costs. The court finds justification for sanctions against Plaintiff but does not find the stated amount of \$1200 (\$400 for three hours of work) to be reasonable for a motion whose Memorandum of Points was pasted and copied from the Defendant's Motion concerning Form Interrogatories and was not tailored *at all* to the circumstances of the discovery dispute concerning the Special Interrogatories.

Payment is due to Defendant's counsel within 30 days after service of notice of entry of this order on all parties.

#### Issue Conferences

18. 10:00 AM CASE NUMBER: MSC21-02399

CASE NAME: SYED VS. LEITAO

ISSUE CONFERENCE

FILED BY:

\*TENTATIVE RULING:\*

**Vacated** by the court in response to unopposed *ex parte* application. Motion to set Trial was set for hearing July 17, 2026 at 9:00 a.m., Dept. 32.

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| <b>Courtroom Clerk's Session</b> |
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19. 1:30 PM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

ISSUE CONFERENCE IN PERSON

FILED BY:

**\*TENTATIVE RULING:\***

Issue Conference previously set for July 10, 2026 is vacated. See Line 1 above.